

SENATE No. 974

The Commonwealth of Massachusetts

PRESENTED BY:

Kelly A. Dooner

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing liability coverage for facilities lodging individuals in the emergency shelter program.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Kelly A. Dooner</i>	<i>Third Bristol and Plymouth</i>	
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>4/2/2025</i>

SENATE No. 974

By Ms. Dooner, a petition (accompanied by bill, Senate, No. 974) of Kelly A. Dooner for legislation to establish liability coverage for facilities lodging individuals in the emergency shelter program. Housing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing liability coverage for facilities lodging individuals in the emergency shelter program.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 23B of the General Laws is hereby amended by inserting after Section 30 the
2 following new section:-

3 Section 30A: Lodging Liability Insurance for Damages in Emergency Housing
4 Assistance; Requirements

5 (a) Any hotel, motel, or lodging facility contracted by the Commonwealth to provide
6 emergency housing assistance shall:

7 (1) Maintain an active general liability insurance policy and property damage insurance
8 that covers damages caused by occupants placed through the emergency housing assistance
9 program; (2) Provide annual proof of insurance coverage to the executive office prior to the
10 signing of any contract and upon contract renewal; (3) Assume full financial responsibility for
11 any property damage, destruction, or loss caused by occupants housed under state-funded

emergency housing programs. The Commonwealth shall not be financial responsibility for any such damages, including but not limited to repair costs, replacement costs, insurance deductibles, or lost revenue due to unusable rooms; (4) Submit timely damage reports to the facility's insurance provider and pursue reimbursement exclusively through insurance policies.

(b) Facilities that are lodging individuals under Section 30 of Chapter 23B that fail to maintain proper insurance or attempt to recover damage costs from the Commonwealth shall experience: (1) Termination of contracts; (2) Financial penalties as determined by the executive office (3) Disqualification from future state housing contracts

(c) The Executive Office of Housing and Livable Communities shall promulgate rules and regulations necessary to implement this section.